

(4) *Loan under the Landlord and Tenant (Ireland) Act, 1870*
(33 & 34 Vict. c. 46).

Name of Borrower.	Amount of Loan.	Amount to be written off.
Wm. Ryan, Parkroe, Cappawhite, County Tipperary.	£ 266	£ s. d. 22 16 3

(5) *Loans under the Land Law (Ireland) Act, 1881*
(44 & 45 Vict. c. 49. s. 31).

Name of Borrower.	Amount of Loan.	Amount to be written off.
P. Dunlap Coganla, Westport, County Mayo.	£ 55	£ s. d. 13 15 4
William Kells Carnroe, Scottshouse, Clones, County Monaghan.	70	44 12 10
Thomas Carr, Drumatrumman, Kerry-Keel, County Donegal.	50	23 1 5

(6) *Loans under the Public Works (Ireland) Act, 1831 (1 & 2 Will. 4. c. 33), and the Public Works Loans (Ireland) Act, 1877 (40 & 41 Vict. c. 27).*

Name of Borrower.	Amount of Loan.	Amount to be written off.
Waterford and Wexford Railway, now the Fishguard and Rosslare Railways and Harbours Co.	£ 53,000	£ s. d. 7,053 19 6
Limavady and Dungiven Railway Co.	19,601	17,601 0 0

CHAPTER 24.

An Act to amend the Law relating to Drunkenness in Ireland, and for purposes connected therewith.

[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) Where a court of summary jurisdiction is satisfied by evidence produced before it that a married man is a habitual drunkard, As to married men when habitual drunkards,

42 & 43 Vict.
c. 19.

drunkard, as defined by section three of the Habitual Drunkards Act, 1879, the court may, on the application of any person specified in this section, make an order under this Act protecting—

- (a) The earnings or separate property of the wife of the drunkard;
- (b) Anything purchased by her with such earnings or property;
- (c) The wearing apparel, school requirements, and earnings of her children or step-children;
- (d) Any tools, instruments, appliances, or materials entrusted to her independently of her husband;
- (e) Any furniture, bedding, or other articles in use as household necessities in her residence;
- (f) Any tools, instruments, appliances, or other articles used in connection with any work, business, or calling engaged in by the wife or her children or step-children independently of her husband.

(2) The persons who may make an application to the court under this section are the wife of the habitual drunkard or his or her parent, child, brother, or sister, or anyone holding the commission of the peace of the borough or county in which the alleged habitual drunkard resides, or the relieving officer of the district in which the alleged habitual drunkard resides.

As to married
women when
habitual
drunkards.

2.—(1) Where a court of summary jurisdiction is satisfied by evidence produced before it that a married woman is a habitual drunkard, as defined by section three of the Habitual Drunkards Act, 1879, the court may, on the application of any person specified in this section, make an order under this Act, protecting—

- (a) Any furniture, bedding, or other articles in use as household necessities in the residence of the husband of the drunkard;
- (b) The wearing apparel, school requirements, and earnings of his children or step-children;
- (c) Any tools, instruments, appliances, or other articles belonging to him, or entrusted to him independently of his wife.

(2) The persons who may make an application to the court under this section are the husband of the habitual drunkard or his or her parent, child, brother, or sister, or anyone holding the commission of the peace of the borough or county in which the alleged habitual drunkard resides, or the relieving officer of the district in which the alleged habitual drunkard resides.

Power to
rescind or vary
orders.

3. The court may at any time rescind or vary an order under this Act.

Penalty for
illegal seizure
or pawning.

4. While an order under this Act is in force it shall not be lawful to seize or sell any article specified therein for the satisfaction or discharge of any debt or liability of the habitual

drunkard, or knowingly to buy from him, or receive from him, or on his behalf, any such article in pledge or pawn, or for him to sell or give in pledge or pawn any such article; and any person knowingly acting in contravention of this enactment shall be liable, on summary conviction, to a fine not exceeding forty shillings, or to imprisonment, with or without hard labour, for any period not exceeding one month.

5. Any order made under sections one, two, four, or ten As to appeal. of this Act shall be subject to appeal as if it were an order imposing a fine of more than twenty shillings, or inflicting imprisonment of more than one month's duration.

6. An order under this Act shall not affect any liability to Relief. a board of guardians in respect of relief given to a wife or children.

7. Any person who, being drunk while in charge of any Penalty. person or animal or vehicle of whatever description and by whatever kind of power it may be driven or propelled, or in the possession of any loaded firearm or of any instrument, tool, or article which unless managed with due care would become a source of danger to the person or persons in whose presence it might be used, carried, or placed, endangers the life or limb of any person, shall be liable, on summary conviction, to a fine not exceeding forty shillings, or to imprisonment, with or without hard labour, for a period not exceeding one month.

8. The owner or manager of any premises may require any Arrest. constable on duty to arrest and remove from such premises any person in his employment who is found drunk thereon.

9.—(1) Any person found drunk in any place, whether a Penalty on persons found drunk in charge of children. building or not, to which the public have access, whether on payment or not, or on any licensed premises, while in charge of a child apparently under the age of seven years, may be apprehended, and shall, if the child is under that age, be guilty of an offence under this section, and be liable, on summary conviction, to a fine not exceeding forty shillings, or to imprisonment, with or without hard labour, for any period not exceeding one month.

(2) If the child appears to the court to be under the age of seven, the child shall, for the purpose of this section, be deemed to be under that age unless the contrary is proved.

(3) An offence under this section shall be deemed to be included in the list of offences mentioned in the First Schedule 61 & 62 Vict. c. 80. 85 & 36 Vict. c. 94. to the Inebriates Act, 1898, and in section sixty of the Licensing Act, 1872.

10. Any person who, being on any premises licensed for the Penalty for aiding and abetting a drunken person. sale of intoxicating liquors, whether for consumption on or off such premises, shall procure, or attempt to procure, any intoxicating liquor for consumption by any drunken person, or who shall aid and abet any drunken person in obtaining or consuming

any intoxicating liquor on, or in the immediate vicinity of, any premises so licensed as aforesaid, shall be liable, on summary conviction, to a fine not exceeding forty shillings, or to imprisonment, with or without hard labour, for any period not exceeding one month :

Provided always that no person shall be liable to be convicted under this section unless the court is satisfied that he knew or ought to have known the condition of the person in connection with whom the charge is brought.

Court to order persons to be of good behaviour.

11. Where a person is convicted of any offence included, or deemed to be included, in the list of offences mentioned in the First Schedule to the Inebriates Act, 1898, the court may, either in addition to or in substitution for any other penalty, order the offender to enter into a recognizance with or without sureties to be of good behaviour.

Witnesses.

12. In all proceedings under this Act a husband or wife shall be a competent witness.

Short title and application of Act.

13. This Act shall apply to Ireland only, and may be cited as the Summary Jurisdiction (Ireland) Act, 1908.

CHAPTER 25.

An Act to extend the Military Lands Acts to Naval Volunteers. [1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Application of Military Lands Acts to naval volunteers.

1. The Military Lands Acts, 1892 to 1903, shall apply in the case of divisions or companies of the Royal Naval Volunteer Reserves as they apply in the case of volunteer corps, and shall have effect as if they were herein re-enacted and in terms made applicable to such divisions and companies, and in particular as if—

(a) for references to the Secretary of State there were therein substituted references to the Admiralty ;

(b) for references to " military " there were therein substituted references to " naval " ;

(c) for references to sections twenty-four and twenty-five of the Volunteer Act, 1863, there were therein substituted references to those sections as applied to the Royal Naval Volunteer Reserves by the regulations made under the Naval Forces Act, 1903, and set forth in the Schedule to this Act, which regulations are hereby confirmed.

26 & 27 Vict.
c. 65.

3 Edw. 7, c. 6.

Short title.

2. This Act may be cited as the Naval Lands (Volunteers) Act, 1908.